tionally, and there will be included in the agreement an appropriate clause providing for the repayment, as additional excessive profits, of any portion of such amount not thereafter actually paid or incurred by the contractor within two years after the date of termination.

(2) If the renegotiation for such fiscal year is concluded by order, such estimated costs will not be allowed. However, the risk that the contractor will thereafter be required to pay such costs will be taken into consideration under § 1460.12 of this subchapter.

(f) *Limitation on post-termination costs.* Notwithstanding the provisions of paragraphs (d) and (e) of this section, no cost which has not been paid or incurred within two years after the date of termination will be allocated to performance before the close of the date of termination. If, at the time of renegotiation, it appears that a cost has been or is likely to be paid or incurred more than two years after the date of termination, consideration will be given thereto under § 1460.12 of this subchapter together with the other risks assumed by the contractor. The determination of when a cost is paid or incurred shall be made in accordance with the method of accounting employed by the contractor for purposes of renegotiation. The time limitation specified in the first sentence of this subparagraph shall not apply to costs which are accounted for by the completed contract method of accounting.

(Sec. 109, 65 Stat. 22; 50 U. S. C. App. 1219)

Dated: December 10, 1956.

THOMAS COGGESHALL,
Chairman.

[F. R. Doc. 56-10207; Filed, Dec. 12, 1956; 8:49 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 1371]

[Fairbanks 013140]

ALASKA

WITHDRAWING PUBLIC LAND FOR USE OF DEPARTMENT OF TERRITORIAL POLICE AS AN ADMINISTRATION SITE

By virtue of the authority vested in the President by section 2380 of the Revised Statutes (43 U. S. C. 711), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Subject to valid existing rights, the following-described public land in Alaska, which is a portion of the lands withdrawn for townsite purposes by Public Land Order No. 808 of February 27, 1952, is hereby withdrawn from sale or disposal and reserved and set apart under the jurisdiction of the Department of the Interior for use by the Department of Territorial Police as an administrative site, under such conditions as may be prescribed by the Department of the Interior:

Lots 1 and 2, United States Survey No. 2770.

The tracts described contain 2.49 acres.

Public Land Order No. 808 of February 27, 1952, is hereby modified to the extent necessary to permit the use of the land by the Department of Territorial Police.

HATFIELD CHILSON,
Assistant Secretary of the Interior.

DECEMBER 7, 1956.

[F. R. Doc. 56-10182; Filed, Dec. 12, 1956; 8:47 a. m.]

[Public Land Order 1372]

[884507]

OREGON

REVOKING EXECUTIVE ORDER NO. 3242 OF MARCH 6, 1920, WHICH WITHDREW LANDS FOR USE OF FOREST SERVICE AS FORT ROCK ADMINISTRATIVE SITE

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141) and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Order No. 3242 of March 6, 1920, temporarily withdrawing the following-described public lands in Oregon for use of the Forest Service, Department of Agriculture, as the Fort Rock Administrative Site, is hereby revoked:

WILLAMETTE MERIDIAN

T. 25 S., R. 14 E.,
Sec. 29, SW¼.

The area described contains 160 acres.

The restored land lies one mile north of the Town of Fort Rock, which is situated in the northwest corner of Lake County, Oregon.

The lands have been classified for disposal to a qualified applicant for historic monument purposes pursuant to the act of June 4, 1954 (68 Stat. 173; 43 U. S. C. 869).

HATFIELD CHILSON,
Assistant Secretary of the Interior.

DECEMBER 7, 1956.

[F. R. Doc. 56-10183; Filed, Dec. 12, 1956; 8:47 a. m.]

[Public Land Order 1373]

[73213]

MONTANA

PARTIAL REVOCATION OF EXECUTIVE ORDER OF SEPTEMBER 10, 1913, WHICH CREATED POWER SITE RESERVE NO. 397

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141) and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

The Executive order of September 10, 1913, creating Power Site Reserve No. 397, is hereby revoked so far as it effects the following-described land:

MONTANA PRINCIPAL MERIDIAN

T. 16 N., R. 19 W.,
Sec. 2, NE¼SE¼.

The area described aggregates 40 acres.

The lands are tribal lands of the Flathead Indians and are, therefore, not subject to the provisions contained in the act of September 27, 1944 (58 Stat. 747; U. S. C. 279–284) as amended, granting preference rights to veterans of World War II, the Korean Conflict and others.

HATFIELD CHILSON,
Assistant Secretary of the Interior.

DECEMBER 7, 1956.

[F. R. Doc. 56-10206; Filed, Dec. 12, 1956; 8:48 a. m.]

TITLE 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

[Docket No. 11809; FCC 56-1217]

PART 1—PRACTICE AND PROCEDURE

PART 66—APPLICATIONS RELATING TO CONSOLIDATION, ACQUISITION OR CONTROL OF TELEPHONE COMPANIES

In the matter of promulgation of Part 66, rules governing applications filed by telephone companies pursuant to section 221 (a) of the Communications Act of 1934, as amended, to consolidate their properties or a part thereof into a single company, or for authority for one or more companies to acquire the whole or part of the property of another company or other telephone companies, or the control thereof by the purchase of securities, or in any other like manner; Docket No. 11809.

Report and order. 1. On September 4, 1956, the Commission released a notice of proposed rule making proposing to promulgate a new Part 66 of its rules and regulations relating to applications under section 221 (a) of the Communications Act of 1934, as amended. The proposed Part 66 is designed to replace rules and regulations currently appearing in § 1.527 of Part 1 and also includes new provisions to reflect changes in section 221 (a) which became effective on August 2, 1956, under Public Law 914, 84th Congress. This notice was published in the FEDERAL REGISTER on September 8, 1956 (21 F. R. 6842) in accordance with section 4 (a) of the Administrative Procedure Act. Interested persons were given until October 1, 1956, to file comments on the proposed rules and ten days thereafter were allowed for filing comments or briefs in reply to the original comments.

2. The time for filing comments regarding the above-mentioned proposed rule making has expired. The Commission received timely comments from the American Telephone and Telegraph Company (AT&T) on behalf of the Bell System Telephone Companies, the Communication Workers of America AFL-CIO (CWA) and the following telephone associations: United States Independent Telephone Association (USITA), Iowa Independent Telephone Association, Tennessee Telephone Association, Pennsylvania Independent Telephone Association, Texas Telephone Association, California Independent Telephone As-